



FEDERAL JUDICIAL ACADEMY (AMENDMENT) ORDINANCE, 2014

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FEDERAL JUDICIAL ACADEMY (AMENDMENT) ORDINANCE, 2014

ORDINANCE No. V OF 2014

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ORDINANCE

further to amend the Federal Judicial Academy Act, 1997

WHEREAS it is expedient to amend the Federal Judicial Academy Act, 1997 (XXVIII of 1997), for the purposes hereinafter appearing;

AND WHEREAS the Senate and the National Assembly are not in session and the President is satisfied that circumstances exist which render it necessary to take immediate action:

Now, THEREFORE, in exercise of the powers conferred by clause (1) of Article 89 of the Constitution of the Islamic Republic of Pakistan, the President is pleased to make and promulgate the following Ordinance:-

1.Short title and commencement.—(1) This Ordinance may be called the Federal Judicial Academy (Amendment) Ordinance, 2014.

(2) It shall come into force at once.

2.Amendment of section 2, Act XXVIII of 1997.—(1) In the Federal Judicial Academy Act, 1997 (XXVIII of 1997), hereinafter referred to as the said Act, in section 2, after clause (b), the following new clause shall be inserted, namely:-

"(bb)"Centre of Excellence" means the Centre of Excellence for Law and Judicial Education."

3.Amendment of section 3, Act XXVIII of 1997.—In the said Act, in section 3, for the heading and sub-section (1), the following shall be substituted, namely:-

"Conversion of Academy into Centre of Excellence.—(1) The Academy shall stand converted into a Centre of Excellence for Law and Judicial Education."

4.Substitution of name of Academy.—In the said Act, in subsections (2) and (3) of section 3 and sections 4 to 14 (both inclusive), for the word "Academy" wherever occurring, the words "Centre of Excellence" shall be substituted.

5. Amendment of section 4, Act XXVIII of 1997.— In the said Act, in section

- (i) in clause (a), the word "and" occurring for the second time shall be omitted and after the word "personnel", the words "lawyers, investigators, prosecutors, prison officers and government officers etc." shall be added;

(ii) in clause (b), the word "and" occurring for the second time shall be omitted and after the word "personnel", the commas and words ",lawyers, investigators, prosecutors, prison officers and government officers etc." shall be added;

(iii) in clause (c), the word "and" at the end shall be omitted; and

(iv) in clause (d), for the full stop at the end. a semi-colon and the word "and" shall be substituted and after clause (d) amended as aforesaid, the following new clause shall be added, namely:-

"(e) imparting legal and judicial education/training at graduation and higher level in various disciplines of law/judicial education."

6.Amendment of section 5, Act XXVM of 1997.— In the said Act, in section 5, after clause (vii), the following new clause shall be inserted, namely;

"(viiia) The Chief Justice of Islamabad High Court Member".

7.Amendment of section 6, Act XXVIII of 1997.—In the said Act, in section 6, after clause (a), the following new clauses shall be inserted, namely:-

"(aa) award degrees, diplomas and certificate;

(ab) approve academic and, research programmes;"

8.Amendment of section 9, Act XXVIII of 1997.— In the said Act, in section 9, in sub-section (5), after the word "committees", the words "Including an Academic Council" shall be inserted.

9.Amendment of section 11, Act XXVIII of 1997.— In the said Act, in section II in sub-section (4), for words and commas "Academy immediately before the commencement of this Act, other than the persons so serving on deputation, shall stand transferred to the Academy and become employees of the Academy", the words, commas, brackets and figure "Federal Judicial Academy immediately before the commencement of the Federal Judicial Academy (Amendment) Ordinance, 2014, other than the persons so serving on deputation shall stand transferred to the Centre of Excellence and become employees of the Centre of Excellence" shall be substituted.

10. Insertion to new sections, Act XXVIII of 1997.—In the said Act, after section 15, the following new section shall be inserted, namely:-

"16. **Power to make regulations**--The Board may make regulations concerning academic matters not inconsistent with the rules, as it may consider necessary for carrying out the purposes of this Act."
